

Chief Justice's Court

Case :- WRIT - C No. - 9076 of 2017

Petitioner :- Gee Pee Cycle Balls Pvt. Ltd. Thru' Its Director

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Heard Mr. H.P. Dube, learned counsel for the petitioner and Mr. Chandan Agarwal, learned counsel for respondent nos. 2 and 3.

Counsel for the petitioner submits that the petitioner has already raised objections under Section 6.5 of the U.P. Electricity Supply Code, 2005 which are under consideration. He submits that the petitioner shall comply with all the formalities that are mandated under the said provision or any other provision of the Code, for considering objections, within fifteen days from today. His statement is recorded and accepted. If the petitioner complies with all the formalities, as aforementioned, the Authority may consider his objections and pass appropriate orders within a period four weeks therefrom.

If the petitioner complies with all the requirements for hearing of his objections as contemplated under Section 6.5 of the Code within the time frame indicated above, till the objections are decided, no coercive action shall be taken against him.

The petition is accordingly disposed of.

Order Date :- 2.3.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)